

M/s P.S. Cold Storage (A Unit of Taj Dairy Milk Pvt. Ltd.) & Another v. Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd. & 3 Others

Allahabad High Court · Division Bench · 4 October 2023 · 2023:AHC:189974-DB · Writ - C No. 33565 of 2023 · **Writ petition disposed of; grievance against the notice dated 14.09.2023 and the order dated 15.09.2023 to be raised under Clause 6.5 within three weeks and decided after hearing within two months; no disconnection until the earlier of those events; the demand was not decided**

HEADNOTE

Where a cold-storage consumer disputes the correctness of a corrected demand of Rs 3,38,786 in a recovery notice dated 14 September 2023 and an order dated 15 September 2023, and the Court has no calculation of the discount the consumer was entitled to as against the discount actually given, the writ court will not decide the merits. On the statement of counsel for the Electricity Department, if the petitioners raise that grievance under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within three weeks, it is to be decided after hearing them within the next two months, in accordance with law. For two months, or until that application is decided, whichever is earlier, there shall be no disconnection. The writ petition is disposed of. A correction allowed on 30 October 2023 requires the prayer for correction of consumption bills to be read as ending in December 2019. The Court did not decide the demand, the rebate, the electricity-duty refund, or those historical bills.

FACTUAL SUMMARY

M/s P.S. Cold Storage, a unit of Taj Dairy Milk Pvt. Ltd., and another challenged a recovery notice dated 14 September 2023 of respondent no. 2 and an order dated 15 September 2023 of respondent no. 3 of Dakshinanchal Vidyut Vitran Nigam Ltd. They also sought from respondent no. 4 refund of electricity duty for January 2010 to January 2020 under a notification of 21 January 2010, and correction of consumption bills. A correction allowed on 30 October 2023 requires that prayer to be read as May 2010 to December 2019.

They ran a rural cold storage from 2010 on an 11KVA HV-2 connection and had paid charges after policy rebates. A magisterial inquiry on 13 August 2018, after an approach to the Ombudsman, found that admissible rebates had not been given. Later bills were reduced and paid, and rebate was extended for 2020 to 2023. The notice and order corrected consumption from November 2022 into 2023 to Rs 3,38,786. A representation of 16 September 2023 disputing that sum was not considered, and the Court had no calculation of the discount entitled against the discount given.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Disputed corrected demand, with no discount calculation before the Court, is to be raised under Clause 6.5; disconnection stayed until the earlier of two months or that decision

QUESTION

Where a consumer disputes the correctness of a corrected electricity demand and the Court has no calculation of the discount entitled as against the discount given, will the writ court decide that demand?

HOLDING

No. The Court declined to go further into the facts or the merits. Counsel for the Electricity Department stated that if the petitioners approached the authorities under Clause 6.5 of the U.P. Electricity Supply Code, 2005, their grievance relating to the demand in the notice dated 14.09.2023 and the order dated 15.09.2023 would be considered. The Court directed that if the petitioners raise that grievance under Clause 6.5 within three weeks, it be decided after hearing them within the next two months, in accordance with law. For two months, or until the application is decided, whichever is earlier, there shall be no disconnection of electricity. The writ petition was disposed of. The demand was neither quashed nor affirmed. ¶ 5-9

QUALIFIER

The direction is confined to the notice of 14.09.2023 and the order of 15.09.2023. The Court did not name the Clause 6.5 authority, did not treat the representation of 16.09.2023 as that application, and did not decide the electricity-duty refund or correction of bills from May 2010 to December 2019.

FLAG The disposing order of 4.10.2023 (Neutral Citation No. 2023:AHC:189974-DB; Siddhartha Varma and Manoj Bajaj, JJ.) is unnumbered. Paragraphs are counted in that order: (1) prayers; (2) rural cold storage, 11KVA connection in the HV-2 tariff category, rebates and timely payment; (3) approach to the Ombudsman, magisterial inquiry of 13.08.2018, later reduction of bills, and rebate for 2020-2023; (4) corrected demand of Rs 3,38,786 for consumption from November 2022 into 2023, and the representation of 16.09.2023; (5) absence of any calculation of discount entitled as against discount given; (6) statement of Shri P.N. Rai for the Electricity Department; (7) direction to raise the grievance under Clause 6.5 within three weeks, to be heard and decided within two months; (8) no disconnection for two months or until that decision, whichever is earlier; (9) disposal. Civil Misc. Correction Application No. 3 of 2023, allowed on 30.10.2023, directs that '2010' in the last printed line of paragraph 1 be read as '2019', so the consumption-bill prayer ends in December 2019 rather than December 2010. The sheet of 3.10.2023 only adjourns the petition to 4.10.2023 as fresh. The order cites 'Clause 6.5 of U.P. Electricity Supply Code, 2005'.

PRINCIPLE TAGS

clause-6.5-alternate-remedy The corrected demand of Rs 3,38,786 in the notice of 14.09.2023 and the order of 15.09.2023 was not examined. On the department's statement the petitioners were left to raise that grievance under Clause 6.5 within three weeks, for a decision after hearing within two months, with no disconnection until the earlier of those events. ¶ 5-9

bill-correction-clause-6.5 The petitioners' case was that the bill for November 2022 into 2023, already corrected to Rs 3,38,786, was still wrong, and that their representation of 16.09.2023 had not been considered. Clause 6.5, and not the writ, was treated as the channel for that correction. The Court did not itself correct the bill. ¶ 4-8

clause-6.5-statutory-remedy-disputed-bill Because the record contained no calculation of the discount the petitioners were entitled to as against the discount actually given, the correctness of the demand was left to the authorities under Clause 6.5. ¶ 5-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS AND QUANTUM OF THE DEMAND OF RS 3,38,786, INCLUDING THE DISCOUNT ENTITLED AS AGAINST THE DISCOUNT GIVEN

Left to a Clause 6.5 decision. The notice of 14.09.2023 and the order of 15.09.2023 were neither quashed nor affirmed. ¶ 5-9

NOT DECIDED — REFUND OF ELECTRICITY DUTY PAID FROM JANUARY 2010 TO JANUARY 2020 UNDER THE NOTIFICATION DATED 21.01.2010

Sought by mandamus against respondent no. 4. The operative direction covers only the notice of 14.09.2023 and the order of 15.09.2023. ¶ 1

NOT DECIDED — CORRECTION OF CONSUMPTION BILLS FROM MAY 2010 TO DECEMBER 2019

The correction application changed the terminal year in that prayer from 2010 to 2019. That historical correction was not directed. ¶ 1

NOT DECIDED — EFFECT OF THE MAGISTERIAL INQUIRY DATED 13.08.2018 AND OF THE REPRESENTATION DATED 16.09.2023

Both were recorded as the petitioners' case. The Court did not decide whether rebates had been withheld, and did not treat the representation as the Clause 6.5 application. ¶ 3-4